

25STCV18381 25STCV18381

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-30

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Case Number: 25STCV18381 Hearing Date: July 30, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:15 PM on July 29, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 29, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that Defendant

could not repair the vehicle to conform to warranties.

The parties settled the case. Plaintiff

moves for an award of attorney's fees.

TENTATIVE RULING

Plaintiff Chris Jordan G. De

Jesus's motion for attorney's fees is GRANTED in the amount of \$12,000.

ANALYSIS

Motion For

Attorney Fees

Discussion

The Court

has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Plaintiff Chris Jordan G. De Jesus

moves for an award of attorney's fees.

The parties settled the case.

Plaintiff moves for an award of attorney's fees in the amount of (1) \$11,966.00 in attorneys' fees for Quill & Arrow, LLP; (2) a 1.25 multiplier enhancement on the attorney fees (or \$2,991.50); and (3) an additional \$4,000.00 for Plaintiff's counsel to review Defendant's Opposition; draft the Reply; and attend the hearing on this Motion.

Plaintiff

brought causes of action pursuant to the Song-Beverly Act, Civil Code § 1790, et seq. Civil Code, § 1794(d) provides:

(d) If the

buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

Plaintiff obtained a settlement

against VWGA in the amount of \$50,092.97 plus, attorneys' fees, costs, and expenses as the prevailing party.

The

determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group

v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal. App. 4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in

determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, the Complaint was filed on

June 25, 2025. Defendant Volkswagen Group of America, Inc. filed its Answer on July 16, 2025 and Defendant LAD-V, LLC filed its Answer on October 9, 2025. Plaintiff filed the motion for attorney's fees on May 26, 2026 before the notice of settlement was filed on June 3, 2026. There was no other law and motion.

In general, Lemon Law litigation

presents certain routine issues which are applicable to other consumers' vehicles, which would trigger economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of Lemon Law case. The Complaint included four causes of action, none of which were fraud-based.

The Court has reviewed the billing summary attached as Exhibit 40 to the Declaration of Kevin Y. Jacobson. The Court approves the hourly rates of \$395, \$425, \$450, \$500, \$595 sought by Plaintiffs' counsel's firm to be reasonable for counsel with similar experience in the field. (Jacobson Decl., ¶¶ 46 – 55.) However, the Court reads into these hourly rate experience in consumer and lemon law litigation which would account for efficiency and knowledge that would be expected of counsel billing at these rates, which in turn should minimize the amount of legal research and drafting of discovery requests and responses required for this Lemon Law case.

“A trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case.” (Karton v. Ari Design & Constr., Inc (2021) 61 Cal.App.5th 734, 744-45.)

The Court acknowledges that Plaintiff's counsel conducted written discovery and prepared for a deposition. The Court also notes that Defendant's third CCP § 998 offer of \$50,092.97 was more than double the first CCP § 998 offer of \$23,509.83, so Plaintiff's counsel cannot be faulted for failing to accept the first offer and continuing to conduct discovery. The Court declines to reduce the amount of fees to \$5,215 as requested by Defendant in the opposition. However, the Court finds that the reasonable amount of attorney's fees incurred in this case, including bringing this motion for attorney's fees, is \$12,000. The Court declines to apply a multiplier. The Court reads into the hourly rates charged by counsel the factors of risk and delay in payment. As such, the Court does not find any justification for the application of a multiplier and declines to apply such.

[E]ven though the trial court did not specifically mention other factors open to consideration when a multiplier is under consideration, [an appellate] court must presume that the trial court considered all factors in reaching its decision, “even though the court may not have mentioned or discussed them in its written ruling.” (Citation omitted.)

(Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 255.)

Plaintiff's motion for attorney's
fees is GRANTED in the reduced amount of \$12,000.